COMMERCIAL AGREEMENT - RECORD 015

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-015

1. Recitals and defined terms

This Pricing and Renewal Amendment is made between Helioscope Robotics, Inc. as Provider and Orchard Retail Services Corp. as Customer, a retail replenishment business organised in Oregon, contracting through Orchard Retail Services Corp.. Orchard and the Provider have agreed that terms defined in the recitals and in Exhibit A carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Orchard has agreed, and the Provider has accepted, that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On any reading, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 5 sites in retail replenishment, Orchard takes this obligation at site level rather than centrally under the Pricing and Renewal Amendment. For a customer of Orchard's size the clause is unremarkable, but Article 18 (Assignment) is drafted more tightly here than in the Provider's standard form.

Orchard is not obliged, under Schedule 2, to accept that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In application, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Orchard, a retail replenishment operator running 5 sites out of Oregon, the point matters because the Pricing and Renewal Amendment is administered site by site. For a customer of Orchard's size the clause is unremarkable, but Article 5 (Delivery and Title) is drafted more tightly here than in the Provider's standard form.

The Provider warrants to Orchard that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As a remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Orchard treats the obligation as a site-level matter across its 5 sites in Oregon, consistent with the Pricing and Renewal Amendment. Where Orchard has raised a query the Provider has answered by reference to Article 21 (Governing Law and Disputes), and the exchange is on the contract file.

Orchard pays the fees under Schedule 3 in consideration of the Provider's undertaking that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Negotiated position: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Site count matters here: Orchard has 5 sites, and the Pricing and Renewal Amendment treats each as a separate delivery point. Because Orchard operates in retail replenishment, the practical burden of this clause falls on its Oregon operation, and Article 15 (Limitation of Liability) governs how it is measured.

Orchard pricing amendment - Exhibit A - Fee Schedule and Annual Escalator

Orchard fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
ORC-F001	tote carrier	12	$6,699	$80,388	5.1%	on renewal only
ORC-F002	gateway appliance	29	$8,840	$256,360	3.3%	not escalated
ORC-F003	safety scanner kit	17	$7,349	$124,933	4.9%	not escalated
ORC-F004	AMR-200 mobile unit	38	$5,514	$209,532	3.8%	annually each January
ORC-F005	lift attachment	24	$8,962	$215,088	2.6%	not escalated
ORC-F006	gateway appliance	9	$9,642	$86,778	3.4%	on renewal only
ORC-F007	fleet controller	40	$6,428	$257,120	2.0%	on renewal only
ORC-F008	AMR-200 mobile unit	6	$4,747	$28,482	4.8%	annually on the anniversary
ORC-F009	charge dock	9	$7,956	$71,604	5.5%	annually each January
ORC-F010	safety scanner kit	7	$2,824	$19,768	2.7%	not escalated
ORC-F011	AMR-200 mobile	18	$5,872	$105,696	2.7%	not escalated

Orchard fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
	unit					
ORC-F012	lift attachment	26	$3,146	$81,796	5.3%	not escalated
ORC-F013	gateway appliance	2	$9,112	$18,224	3.1%	annually on the anniversary
ORC-F014	fleet controller	5	$5,937	$29,685	5.6%	annually each January
ORC-F015	AMR-400 heavy unit	23	$7,254	$166,842	5.9%	annually each January
ORC-F016	lift attachment	27	$3,103	$83,781	3.8%	on renewal only
ORC-F017	tote carrier	22	$8,424	$185,328	3.1%	annually each January
ORC-F018	gateway appliance	36	$2,986	$107,496	4.0%	on renewal only
ORC-F019	gateway appliance	24	$3,176	$76,224	3.4%	annually each January
ORC-F020	tote carrier	27	$6,715	$181,305	2.0%	annually on the anniversary
ORC-F021	safety scanner kit	7	$9,808	$68,656	2.3%	annually each January
ORC-F022	tote carrier	31	$6,430	$199,330	5.9%	annually on the anniversary
ORC-F023	safety scanner kit	11	$1,763	$19,393	4.5%	annually on the anniversary
ORC-F024	lift attachment	31	$2,893	$89,683	2.3%	on renewal only
ORC-F025	tote carrier	21	$4,085	$85,785	2.6%	annually on the anniversary
ORC-F026	safety scanner kit	35	$9,372	$328,020	2.1%	on renewal only
ORC-F027	safety scanner kit	33	$1,842	$60,786	3.2%	annually each January
ORC-F028	lift attachment	20	$6,660	$133,200	2.0%	annually on the anniversary
ORC-F029	AMR-200 mobile unit	29	$8,858	$256,882	5.4%	annually on the anniversary
ORC-F030	safety scanner kit	28	$8,570	$239,960	4.8%	annually each January
ORC-F031	AMR-200 mobile unit	35	$9,758	$341,530	2.9%	on renewal only
ORC-F032	fleet controller	41	$2,640	$108,240	3.7%	annually each January
ORC-F033	fleet controller	9	$5,385	$48,465	2.8%	on renewal only
ORC-F034	AMR-400 heavy unit	34	$6,090	$207,060	3.4%	annually on the anniversary
ORC-F035	fleet controller	22	$9,092	$200,024	3.5%	annually on the anniversary
ORC-F036	lift attachment	12	$6,018	$72,216	4.3%	annually on the anniversary
ORC-F037	charge dock	22	$5,852	$128,744	2.6%	on renewal only
ORC-F038	AMR-400 heavy unit	28	$1,487	$41,636	3.4%	on renewal only
ORC-F039	tote carrier	38	$3,831	$145,578	2.3%	not escalated
ORC-F040	gateway appliance	23	$4,352	$100,096	4.2%	on renewal only
ORC-F041	fleet controller	16	$5,037	$80,592	2.8%	annually on the anniversary
ORC-F042	lift attachment	41	$8,135	$333,535	4.5%	not escalated
ORC-F043	safety scanner kit	36	$6,659	$239,724	5.7%	annually on the anniversary
ORC-F044	AMR-400 heavy unit	5	$6,485	$32,425	3.8%	not escalated
ORC-F045	tote carrier	30	$4,997	$149,910	4.6%	annually on the anniversary
ORC-F046	AMR-400 heavy unit	16	$2,905	$46,480	3.6%	not escalated
ORC-F047	AMR-200 mobile unit	39	$6,152	$239,928	4.0%	annually each January
ORC-F048	fleet controller	3	$9,353	$28,059	2.4%	annually on the anniversary
ORC-F049	safety scanner kit	4	$4,742	$18,968	5.1%	annually each January

Orchard fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
ORC-F050	lift attachment	17	$2,842	$48,314	2.6%	annually on the anniversary
ORC-F051	safety scanner kit	2	$2,776	$5,552	2.9%	not escalated
ORC-F052	safety scanner kit	6	$3,931	$23,586	4.4%	on renewal only
ORC-F053	tote carrier	35	$6,343	$222,005	5.8%	not escalated
ORC-F054	charge dock	15	$4,593	$68,895	3.1%	not escalated
ORC-F055	safety scanner kit	32	$1,294	$41,408	3.2%	annually on the anniversary
ORC-F056	lift attachment	30	$4,950	$148,500	2.2%	on renewal only
ORC-F057	tote carrier	36	$1,862	$67,032	4.8%	on renewal only
ORC-F058	tote carrier	38	$8,928	$339,264	4.1%	on renewal only
ORC-F059	tote carrier	12	$5,011	$60,132	5.3%	not escalated
ORC-F060	fleet controller	34	$4,272	$145,248	5.0%	annually each January
ORC-F061	AMR-200 mobile unit	30	$4,224	$126,720	5.8%	not escalated
ORC-F062	gateway appliance	27	$8,889	$240,003	3.0%	annually on the anniversary
ORC-F063	tote carrier	5	$8,400	$42,000	3.8%	not escalated
ORC-F064	safety scanner kit	28	$7,466	$209,048	4.6%	on renewal only
ORC-F065	AMR-400 heavy unit	17	$3,535	$60,095	5.4%	annually each January
ORC-F066	AMR-400 heavy unit	9	$2,127	$19,143	5.4%	on renewal only
ORC-F067	lift attachment	20	$7,804	$156,080	2.8%	annually on the anniversary
ORC-F068	gateway appliance	19	$3,928	$74,632	3.5%	annually each January
ORC-F069	tote carrier	12	$6,517	$78,204	4.7%	annually on the anniversary
ORC-F070	lift attachment	18	$4,808	$86,544	5.0%	annually on the anniversary
ORC-F071	AMR-200 mobile unit	2	$7,595	$15,190	2.2%	on renewal only
ORC-F072	AMR-400 heavy unit	8	$6,339	$50,712	4.1%	annually on the anniversary
ORC-F073	charge dock	15	$9,440	$141,600	2.7%	annually on the anniversary
ORC-F074	fleet controller	15	$2,703	$40,545	3.6%	annually each January
ORC-F075	gateway appliance	23	$5,649	$129,927	5.0%	not escalated
ORC-F076	fleet controller	26	$9,518	$247,468	5.5%	annually each January
ORC-F077	AMR-200 mobile unit	33	$2,804	$92,532	2.4%	annually each January
ORC-F078	gateway appliance	38	$7,693	$292,334	5.5%	annually on the anniversary
ORC-F079	fleet controller	31	$8,967	$277,977	4.6%	annually on the anniversary
ORC-F080	lift attachment	6	$3,487	$20,922	3.9%	not escalated
ORC-F081	charge dock	36	$5,042	$181,512	2.9%	annually each January
ORC-F082	charge dock	17	$5,295	$90,015	5.7%	annually on the anniversary
ORC-F083	tote carrier	19	$3,915	$74,385	4.5%	not escalated
ORC-F084	charge dock	5	$3,815	$19,075	5.3%	on renewal only
ORC-F085	lift attachment	4	$3,641	$14,564	2.8%	not escalated
ORC-F086	lift attachment	19	$8,119	$154,261	4.5%	on renewal only
ORC-F087	AMR-400 heavy unit	19	$3,745	$71,155	3.0%	not escalated
ORC-F088	AMR-400 heavy unit	28	$6,945	$194,460	2.8%	annually on the anniversary

2. Scope of supply and orders

Under Article 17 (Transition Assistance) of the Pricing and Renewal Amendment, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered

until reconfigured at the Provider's cost. On the mechanics, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. For Orchard, a retail replenishment operator running 5 sites out of Oregon, the point matters because the Pricing and Renewal Amendment is administered site by site. Orchard has taken the point up once since signature; the correspondence is filed against Article 6 (Fees and Payment) and did not result in an amendment.

Nothing in Exhibit D entitles Orchard to assume that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Procedurally, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Operating 5 sites, Orchard applies the Pricing and Renewal Amendment at the point of delivery, as retail replenishment practice requires. The Orchard file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.

Read with Schedule 3, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Textually, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Oregon is where Orchard runs retail replenishment operations across 5 sites, and the Pricing and Renewal Amendment follows that footprint. Because Orchard operates in retail replenishment, the practical burden of this clause falls on its Oregon operation, and Article 13 (Licences) governs how it is measured.

Orchard acknowledges that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On any reading, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 5 sites, Orchard applies the Pricing and Renewal Amendment at the point of delivery, as retail replenishment practice requires. Where Orchard has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

3. Delivery, title and risk

Orchard Retail Services Corp. is entitled to require that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Textually, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Orchard treats the obligation as a site-level matter across its 5 sites in Oregon, consistent with the Pricing and Renewal Amendment. Where Orchard has raised a query the Provider has answered by reference to Article 21 (Governing Law and Disputes), and the exchange is on the contract file.

Under Article 19 (Confidentiality) of the Pricing and Renewal Amendment, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Deliberately so: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 5 sites in Oregon means Orchard applies the Pricing and Renewal Amendment through its regional operations team rather than through head office. Nothing in the Orchard negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

Subject to Article 5 (Delivery and Title), the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Operationally, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Running 5 sites in retail replenishment, Orchard takes this obligation at site level rather than centrally under the Pricing and Renewal Amendment. Because Orchard operates in retail replenishment, the practical burden of this clause falls on its Oregon operation, and Article 11 (Data and Telemetry) governs how it is measured.

On the terms of Exhibit A, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In effect, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Running 5 sites in retail replenishment, Orchard takes this obligation at site level rather than centrally under the Pricing and Renewal Amendment. Orchard has taken the point up once since signature; the correspondence is filed against Article 16 (Term and Termination) and did not result in an amendment.

Orchard pricing amendment - Schedule 2 - Sites and Operating Patterns

Orchard site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
ORC-S001	Larkspur facility	35	2025-07-18	single shift	Provider furnished	not commenced
ORC-S002	Dayton facility	9	2024-09-05	single shift	Customer furnished	accepted with punch list
ORC-S003	Juniper facility	24	2024-09-10	single shift	Customer furnished	accepted
ORC-S004	Larkspur facility	34	2026-12-20	single shift	shared	pending acceptance
ORC-S005	Dunbar facility	37	2024-03-26	single shift	Customer furnished	pending acceptance
ORC-S006	Dunbar facility	28	2025-01-27	two shifts	shared	not commenced
ORC-S007	Evergreen facility	39	2024-06-07	two shifts	shared	pending acceptance
ORC-S008	Larkspur facility	4	2024-02-11	continuous	Customer furnished	pending acceptance
ORC-S009	Harborline facility	14	2025-05-23	single shift	Provider furnished	accepted
ORC-S010	Dayton facility	37	2024-10-10	continuous	shared	accepted with punch list
ORC-S011	Dunbar facility	29	2024-04-18	two shifts	Provider furnished	accepted
ORC-S012	Mesa facility	7	2026-12-23	continuous	shared	accepted with punch list
ORC-S013	Keystone facility	39	2026-02-14	continuous	Customer furnished	accepted with punch list
ORC-S014	Fathom facility	34	2026-01-04	single shift	Provider furnished	not commenced
ORC-S015	Granite facility	6	2026-02-28	two shifts	Provider furnished	pending acceptance
ORC-S016	Larkspur facility	33	2025-09-20	two shifts	Customer furnished	accepted
ORC-S017	Granite facility	39	2024-05-07	single shift	Provider furnished	not commenced
ORC-S018	Dayton facility	8	2026-04-15	single shift	shared	not commenced
ORC-S019	Fathom facility	38	2024-08-03	continuous	Provider furnished	accepted with punch list
ORC-S020	Meridian facility	14	2026-12-19	continuous	shared	accepted with punch list
ORC-S021	Dayton facility	20	2026-12-02	two shifts	Customer furnished	accepted with punch list
ORC-S022	Crestline facility	15	2025-09-13	two shifts	shared	pending acceptance
ORC-S023	Dayton facility	12	2026-08-23	single shift	shared	accepted
ORC-S024	Dayton facility	6	2026-07-15	single shift	shared	pending acceptance
ORC-S025	Evergreen facility	7	2025-12-19	continuous	Provider furnished	accepted with punch list
ORC-S026	Harborline facility	25	2025-10-26	single shift	Customer furnished	accepted with punch list
ORC-S027	Dayton facility	37	2026-05-25	continuous	Provider furnished	accepted
ORC-S028	Harborline facility	17	2025-04-09	continuous	Customer furnished	accepted with punch list
ORC-S029	Keystone facility	27	2024-09-22	single shift	Customer furnished	not commenced
ORC-S030	Fathom facility	11	2026-01-25	single shift	shared	accepted with punch list
ORC-S031	Mesa facility	26	2026-05-16	continuous	Customer furnished	not commenced
ORC-S032	Meridian facility	37	2024-01-21	two shifts	Provider furnished	pending acceptance
ORC-S033	Larkspur facility	32	2026-03-05	single shift	Provider furnished	accepted
ORC-S034	Evergreen facility	7	2024-03-25	continuous	Provider furnished	not commenced
ORC-S035	Meridian facility	18	2024-06-26	single shift	Customer furnished	accepted with punch list

Orchard site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
ORC-S036	Granite facility	33	2026-09-27	two shifts	shared	not commenced
ORC-S037	Evergreen facility	16	2024-04-22	single shift	Provider furnished	pending acceptance
ORC-S038	Crestline facility	25	2026-03-05	two shifts	Provider furnished	accepted
ORC-S039	Larkspur facility	30	2026-09-01	single shift	Customer furnished	pending acceptance
ORC-S040	Fathom facility	13	2024-02-02	two shifts	Provider furnished	not commenced
ORC-S041	Fathom facility	25	2024-06-09	single shift	Provider furnished	accepted with punch list
ORC-S042	Juniper facility	20	2026-04-24	continuous	shared	not commenced
ORC-S043	Fathom facility	7	2025-01-12	continuous	Customer furnished	accepted
ORC-S044	Fathom facility	24	2026-07-23	continuous	Provider furnished	accepted
ORC-S045	Harborline facility	38	2024-06-21	single shift	Provider furnished	accepted
ORC-S046	Granite facility	33	2026-12-08	two shifts	shared	pending acceptance
ORC-S047	Keystone facility	5	2026-07-01	two shifts	shared	not commenced
ORC-S048	Juniper facility	4	2026-07-20	single shift	shared	not commenced
ORC-S049	Juniper facility	13	2024-04-09	two shifts	shared	accepted
ORC-S050	Larkspur facility	4	2024-10-05	continuous	shared	accepted
ORC-S051	Juniper facility	33	2024-03-19	continuous	shared	accepted with punch list
ORC-S052	Juniper facility	9	2026-10-08	continuous	shared	accepted with punch list
ORC-S053	Mesa facility	13	2025-06-22	continuous	Customer furnished	not commenced
ORC-S054	Granite facility	5	2026-07-23	two shifts	Customer furnished	pending acceptance
ORC-S055	Harborline facility	27	2024-06-19	single shift	Customer furnished	not commenced
ORC-S056	Meridian facility	18	2025-08-27	continuous	Provider furnished	not commenced
ORC-S057	Fathom facility	13	2025-09-28	continuous	Customer furnished	accepted
ORC-S058	Mesa facility	32	2026-02-01	single shift	shared	accepted
ORC-S059	Crestline facility	21	2025-09-18	continuous	Provider furnished	accepted
ORC-S060	Keystone facility	34	2026-07-23	continuous	Customer furnished	not commenced
ORC-S061	Dunbar facility	35	2024-07-20	continuous	shared	accepted with punch list
ORC-S062	Harborline facility	16	2024-07-23	continuous	shared	not commenced
ORC-S063	Keystone facility	39	2025-03-08	continuous	Customer furnished	not commenced
ORC-S064	Dunbar facility	22	2024-04-12	two shifts	Customer furnished	pending acceptance
ORC-S065	Meridian facility	8	2024-07-08	continuous	Provider furnished	pending acceptance
ORC-S066	Juniper facility	28	2025-12-20	two shifts	Provider furnished	accepted with punch list
ORC-S067	Larkspur facility	38	2025-08-02	continuous	shared	pending acceptance
ORC-S068	Harborline facility	32	2026-10-26	continuous	shared	accepted with punch list
ORC-S069	Mesa facility	23	2024-04-22	two shifts	Provider furnished	pending acceptance
ORC-S070	Larkspur facility	27	2024-12-06	continuous	Provider furnished	accepted
ORC-S071	Granite facility	8	2024-09-24	continuous	Provider furnished	pending acceptance
ORC-S072	Mesa facility	20	2026-01-19	continuous	Customer furnished	accepted with punch list
ORC-S073	Evergreen facility	18	2025-03-27	continuous	Customer furnished	not commenced

Orchard site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
ORC-S074	Granite facility	12	2026-01-19	two shifts	Provider furnished	pending acceptance
ORC-S075	Dunbar facility	34	2024-09-05	single shift	shared	accepted with punch list
ORC-S076	Mesa facility	31	2026-02-09	continuous	Provider furnished	accepted
ORC-S077	Meridian facility	25	2024-05-23	continuous	shared	pending acceptance
ORC-S078	Dayton facility	25	2024-08-21	single shift	Customer furnished	accepted
ORC-S079	Larkspur facility	25	2026-01-20	continuous	shared	not commenced
ORC-S080	Larkspur facility	32	2026-02-11	two shifts	shared	accepted with punch list
ORC-S081	Juniper facility	21	2026-12-26	continuous	Provider furnished	accepted with punch list
ORC-S082	Dunbar facility	28	2024-09-05	single shift	Customer furnished	accepted with punch list
ORC-S083	Harborline facility	12	2026-04-28	single shift	shared	accepted with punch list
ORC-S084	Harborline facility	31	2026-10-10	two shifts	Customer furnished	not commenced

4. Fees, invoicing and escalation

For the purposes of the Pricing and Renewal Amendment, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Strictly, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Oregon is where Orchard runs retail replenishment operations across 5 sites, and the Pricing and Renewal Amendment follows that footprint. The Orchard relationship is managed against Article 16 (Term and Termination) at each quarterly review, and any variance is minuted there rather than in the Order.

Nothing in Exhibit A entitles Orchard to assume that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In effect, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Oregon is where Orchard runs retail replenishment operations across 5 sites, and the Pricing and Renewal Amendment follows that footprint. The obligation as it applies to Orchard was tightened at signature, and Article 14 (Indemnities) carries the negotiated wording rather than the standard wording.

The Provider has undertaken to Orchard that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. By way of qualification, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Site count matters here: Orchard has 5 sites, and the Pricing and Renewal Amendment treats each as a separate delivery point. Orchard has taken the point up once since signature; the correspondence is filed against Article 2 (Definitions) and did not result in an amendment.

Orchard Retail Services Corp. undertakes that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Per the amendment history, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Orchard, a retail replenishment operator running 5 sites out of Oregon, the point matters because the Pricing and Renewal Amendment is administered site by site. Where Orchard has raised a query the Provider has answered by reference to Article 9 (Customer Obligations), and the exchange is on the contract file.

5. Service levels and credits

Orchard Retail Services Corp. undertakes that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Textually, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 5 sites in Oregon means Orchard applies the Pricing and Renewal Amendment through its regional operations team rather than through

head office. Orchard has taken the point up once since signature; the correspondence is filed against Article 5 (Delivery and Title) and did not result in an amendment.

The Provider warrants to Orchard that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As drafted, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Orchard treats the obligation as a site-level matter across its 5 sites in Oregon, consistent with the Pricing and Renewal Amendment. Administration of this obligation for Orchard sits with the account team rather than with central contracts, and Article 21 (Governing Law and Disputes) is where it is evidenced.

Orchard acknowledges that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. As it bites, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. The Pricing and Renewal Amendment reaches each of Orchard's 5 sites separately, which is how a retail replenishment operator in Oregon administers it. Nothing in the Orchard negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

For the purposes of the Pricing and Renewal Amendment, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Materially, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. The Pricing and Renewal Amendment reaches each of Orchard's 5 sites separately, which is how a retail replenishment operator in Oregon administers it. Administration of this obligation for Orchard sits with the account team rather than with central contracts, and Article 10 (Change Control) is where it is evidenced.

6. Acceptance and change control

The Provider has undertaken to Orchard that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In point of remedy, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Orchard, a retail replenishment operator running 5 sites out of Oregon, the point matters because the Pricing and Renewal Amendment is administered site by site. Because Orchard operates in retail replenishment, the practical burden of this clause falls on its Oregon operation, and Article 18 (Assignment) governs how it is measured.

Orchard bears the risk that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On timing, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Operating 5 sites, Orchard applies the Pricing and Renewal Amendment at the point of delivery, as retail replenishment practice requires. The obligation as it applies to Orchard was tightened at signature, and Article 14 (Indemnities) carries the negotiated wording rather than the standard wording.

Orchard and the Provider agree that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Negotiated position: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Orchard runs 5 sites from Oregon in retail replenishment, so the Pricing and Renewal Amendment is administered locally and this clause is applied per site. Nothing in the Orchard negotiation history qualifies Article 17 (Transition Assistance), and a reviewer should not read the pre-signature drafts as doing so.

Orchard pays the fees under Exhibit B in consideration of the Provider's undertaking that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On this point, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Oregon is where Orchard runs retail replenishment operations across 5 sites, and the Pricing and Renewal Amendment follows that footprint. For a customer of Orchard's size the clause is unremarkable, but Article 7 (Service Levels) is drafted more tightly here than in the Provider's standard form.

Orchard pricing amendment - Schedule 3 - Deployment Milestones and Payment Triggers

Orchard milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
ORC-M001	integration test passed	2025-07	27	facility readiness	$173,083	invoiceable on acceptance
ORC-M002	warranty commencement	2025-12	10	Customer IT dependency	$134,169	invoiceable on certification
ORC-M003	full acceptance	2026-07	13	Customer IT dependency	$247,773	no payment attached
ORC-M004	pilot acceptance	2025-06	6	Customer IT dependency	$181,581	invoiceable on acceptance
ORC-M005	network readiness certified	2026-07	1	labour agreement	$91,845	invoiceable on certification
ORC-M006	steady-state handover	2026-07	4	no delay	$177,010	invoiceable on acceptance
ORC-M007	site survey complete	2024-06	28	facility readiness	$154,053	invoiceable on certification
ORC-M008	network readiness certified	2025-04	6	no delay	$75,916	no payment attached
ORC-M009	steady-state handover	2025-11	6	seasonal freeze	$265,442	no payment attached
ORC-M010	integration test passed	2024-02	28	facility readiness	$126,631	invoiceable on acceptance
ORC-M011	site survey complete	2025-03	6	network provisioning	$159,063	no payment attached
ORC-M012	units delivered	2024-02	31	no delay	$194,283	no payment attached
ORC-M013	integration test passed	2025-06	16	seasonal freeze	$197,150	invoiceable on certification
ORC-M014	full acceptance	2026-08	14	facility readiness	$196,324	no payment attached
ORC-M015	full acceptance	2024-11	20	no delay	$168,714	no payment attached
ORC-M016	site survey complete	2024-01	17	facility readiness	$165,695	invoiceable on acceptance
ORC-M017	steady-state handover	2026-09	19	labour agreement	$72,071	invoiceable on acceptance
ORC-M018	integration test passed	2024-04	10	labour agreement	$211,585	no payment attached
ORC-M019	warranty commencement	2024-09	17	labour agreement	$137,652	invoiceable on acceptance
ORC-M020	steady-state handover	2025-05	1	Customer IT dependency	$253,047	no payment attached
ORC-M021	steady-state handover	2024-05	7	no delay	$71,656	invoiceable on acceptance
ORC-M022	units delivered	2024-12	29	Customer IT dependency	$157,865	invoiceable on acceptance
ORC-M023	full acceptance	2026-11	23	labour agreement	$36,008	invoiceable on acceptance
ORC-M024	units delivered	2024-06	5	labour agreement	$239,398	invoiceable on acceptance
ORC-M025	units delivered	2025-11	13	network provisioning	$157,409	no payment attached
ORC-M026	integration test passed	2026-04	27	facility readiness	$189,171	invoiceable on acceptance
ORC-M027	warranty commencement	2026-07	9	Customer IT dependency	$204,277	invoiceable on acceptance
ORC-M028	network readiness certified	2024-06	1	seasonal freeze	$160,652	no payment attached
ORC-M029	steady-state handover	2025-06	26	labour agreement	$161,659	invoiceable on certification
ORC-M030	site survey complete	2025-11	8	no delay	$173,395	invoiceable on acceptance
ORC-M031	units delivered	2024-01	18	no delay	$155,447	invoiceable on certification
ORC-M032	integration test passed	2026-08	20	labour agreement	$191,112	no payment attached
ORC-M033	site survey complete	2024-03	10	no delay	$136,352	invoiceable on certification
ORC-M034	steady-state	2024-08	5	network	$130,945	no payment

Orchard milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	handover			provisioning		attached
ORC-M035	integration test passed	2024-10	5	network provisioning	$87,028	no payment attached
ORC-M036	steady-state handover	2025-11	25	seasonal freeze	$187,318	invoiceable on certification
ORC-M037	units delivered	2024-08	25	network provisioning	$137,127	invoiceable on certification
ORC-M038	integration test passed	2026-12	18	labour agreement	$73,883	invoiceable on certification
ORC-M039	network readiness certified	2025-02	3	facility readiness	$69,586	invoiceable on certification
ORC-M040	steady-state handover	2026-04	5	Customer IT dependency	$259,128	invoiceable on certification
ORC-M041	units delivered	2026-01	4	labour agreement	$29,468	invoiceable on certification
ORC-M042	site survey complete	2026-05	22	Customer IT dependency	$125,980	invoiceable on certification
ORC-M043	steady-state handover	2025-05	16	seasonal freeze	$53,922	invoiceable on certification
ORC-M044	network readiness certified	2026-08	3	network provisioning	$121,623	invoiceable on certification
ORC-M045	steady-state handover	2024-09	33	no delay	$57,477	no payment attached
ORC-M046	pilot acceptance	2024-01	21	labour agreement	$200,411	no payment attached
ORC-M047	site survey complete	2026-04	15	Customer IT dependency	$242,836	no payment attached
ORC-M048	warranty commencement	2025-07	10	seasonal freeze	$18,066	invoiceable on certification
ORC-M049	pilot acceptance	2024-09	33	network provisioning	$217,534	no payment attached
ORC-M050	units delivered	2024-01	6	seasonal freeze	$248,386	invoiceable on acceptance
ORC-M051	units delivered	2025-02	32	seasonal freeze	$217,953	no payment attached
ORC-M052	warranty commencement	2025-02	12	no delay	$188,218	invoiceable on acceptance
ORC-M053	full acceptance	2026-02	8	facility readiness	$241,007	invoiceable on acceptance
ORC-M054	units delivered	2024-08	23	seasonal freeze	$15,999	no payment attached
ORC-M055	warranty commencement	2026-08	29	Customer IT dependency	$213,915	invoiceable on acceptance
ORC-M056	site survey complete	2025-04	3	seasonal freeze	$249,431	invoiceable on certification
ORC-M057	integration test passed	2026-07	23	facility readiness	$80,042	invoiceable on acceptance
ORC-M058	units delivered	2026-08	3	no delay	$131,105	no payment attached
ORC-M059	site survey complete	2026-05	28	no delay	$72,303	invoiceable on acceptance
ORC-M060	pilot acceptance	2025-06	18	facility readiness	$205,828	invoiceable on certification
ORC-M061	warranty commencement	2026-01	11	seasonal freeze	$82,203	no payment attached
ORC-M062	pilot acceptance	2026-06	27	no delay	$73,143	no payment attached
ORC-M063	pilot acceptance	2025-08	1	seasonal freeze	$196,111	invoiceable on acceptance
ORC-M064	network readiness certified	2026-07	16	network provisioning	$41,109	invoiceable on acceptance
ORC-M065	network readiness certified	2026-10	20	facility readiness	$171,277	no payment attached
ORC-M066	full acceptance	2025-10	17	labour agreement	$110,931	invoiceable on certification
ORC-M067	network readiness certified	2026-08	11	seasonal freeze	$172,699	invoiceable on certification
ORC-M068	warranty	2026-08	19	network	$105,172	invoiceable on

Orchard milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	commencement			provisioning		acceptance
ORC-M069	units delivered	2024-03	2	facility readiness	$88,330	invoiceable on certification
ORC-M070	units delivered	2025-09	24	seasonal freeze	$136,308	invoiceable on certification
ORC-M071	warranty commencement	2025-04	32	Customer IT dependency	$58,653	invoiceable on acceptance
ORC-M072	steady-state handover	2024-04	28	labour agreement	$228,720	no payment attached
ORC-M073	network readiness certified	2024-08	16	seasonal freeze	$134,969	no payment attached
ORC-M074	integration test passed	2025-03	10	network provisioning	$186,352	invoiceable on acceptance
ORC-M075	network readiness certified	2025-06	20	network provisioning	$145,177	invoiceable on acceptance
ORC-M076	network readiness certified	2025-06	19	Customer IT dependency	$217,502	invoiceable on certification
ORC-M077	units delivered	2025-12	27	seasonal freeze	$211,269	invoiceable on certification
ORC-M078	integration test passed	2025-03	on plan	network provisioning	$181,962	invoiceable on acceptance
ORC-M079	warranty commencement	2024-04	4	no delay	$57,507	invoiceable on acceptance
ORC-M080	network readiness certified	2026-11	21	no delay	$225,163	invoiceable on acceptance
ORC-M081	network readiness certified	2024-04	4	Customer IT dependency	$102,302	invoiceable on certification
ORC-M082	site survey complete	2026-10	29	network provisioning	$232,813	invoiceable on certification
ORC-M083	site survey complete	2025-02	13	seasonal freeze	$24,326	invoiceable on acceptance
ORC-M084	steady-state handover	2026-06	on plan	facility readiness	$22,974	no payment attached
ORC-M085	integration test passed	2026-07	14	facility readiness	$91,263	invoiceable on acceptance
ORC-M086	network readiness certified	2026-12	32	Customer IT dependency	$45,752	no payment attached

7. Data, intellectual property and licences

Orchard bears the risk that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On the mechanics, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Because Orchard is a Oregon retail replenishment business with 5 sites, the Pricing and Renewal Amendment devolves this to the site manager. Nothing in the Orchard negotiation history qualifies Article 14 (Indemnities), and a reviewer should not read the pre-signature drafts as doing so.

Where Article 19 (Confidentiality) applies, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As to enforcement, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Oregon is where Orchard runs retail replenishment operations across 5 sites, and the Pricing and Renewal Amendment follows that footprint. Notices under Article 12 (Intellectual Property) go to the contracting entity named in the recital and not to any Orchard affiliate that may operate a site.

Orchard Retail Services Corp. has notified the Provider that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Materially, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Site count matters here: Orchard has 5 sites, and the Pricing and Renewal Amendment treats each as a separate delivery point. The Orchard relationship is managed against Article 10 (Change Control) at each quarterly review, and any variance is minuted there rather than in the Order.

Orchard Retail Services Corp. is entitled to require that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. In point of remedy, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Orchard has 5 sites, and the Pricing and Renewal Amendment treats each as a separate delivery point. Orchard has taken the point up once since signature; the correspondence is filed against Article 21 (Governing Law and Disputes) and did not result in an amendment.

8. Indemnities and limitation of liability

Orchard acknowledges that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In effect, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Running 5 sites in retail replenishment, Orchard takes this obligation at site level rather than centrally under the Pricing and Renewal Amendment. Notices under Article 19 (Confidentiality) go to the contracting entity named in the recital and not to any Orchard affiliate that may operate a site.

Article 5 (Delivery and Title) of the Pricing and Renewal Amendment is to be construed so that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Tighter here than standard: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Orchard treats the obligation as a site-level matter across its 5 sites in Oregon, consistent with the Pricing and Renewal Amendment. The obligation as it applies to Orchard was tightened at signature, and Article 20 (Notices) carries the negotiated wording rather than the standard wording.

The Provider has undertaken to Orchard that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the operative wording, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Operating 5 sites, Orchard applies the Pricing and Renewal Amendment at the point of delivery, as retail replenishment practice requires. The obligation as it applies to Orchard was tightened at signature, and Article 9 (Customer Obligations) carries the negotiated wording rather than the standard wording.

The Provider warrants to Orchard that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Per the amendment history, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 5 sites, Orchard applies the Pricing and Renewal Amendment at the point of delivery, as retail replenishment practice requires. For a customer of Orchard's size the clause is unremarkable, but Article 8 (Acceptance) is drafted more tightly here than in the Provider's standard form.

Orchard pricing amendment - Exhibit C - Service Levels and Credit Ladder

Orchard service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
ORC-L001	response time	98.5%	1% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit only
ORC-L002	availability	90.2%	4% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit only
ORC-L003	resolution time	97.5%	2% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit only
ORC-L004	resolution time	97.4%	6% of monthly fee	5% of monthly fee	excluding force majeure	credit then termination right
ORC-L005	throughput	91.6%	11% of monthly fee	21% of monthly fee	excluding force majeure	credit then termination right
ORC-L006	response time	90.4%	5% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit only
ORC-L007	availability	92.7%	11% of monthly fee	15% of monthly fee	excluding scheduled maintenance	credit only
ORC-L008	throughput	97.0%	3% of monthly fee	12% of monthly fee	no exclusion	credit only

Orchard service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
ORC-L009	throughput	96.1%	2% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit only
ORC-L010	availability	91.2%	11% of monthly fee	16% of monthly fee	no exclusion	credit only
ORC-L011	response time	95.7%	3% of monthly fee	9% of monthly fee	excluding force majeure	credit only
ORC-L012	availability	95.5%	12% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L013	response time	90.0%	5% of monthly fee	30% of monthly fee	no exclusion	credit then termination right
ORC-L014	response time	94.8%	9% of monthly fee	11% of monthly fee	excluding scheduled maintenance	credit only
ORC-L015	availability	90.4%	11% of monthly fee	19% of monthly fee	excluding force majeure	credit then termination right
ORC-L016	throughput	91.2%	12% of monthly fee	25% of monthly fee	excluding Customer-caused outage	credit only
ORC-L017	availability	91.8%	10% of monthly fee	9% of monthly fee	excluding force majeure	credit then termination right
ORC-L018	throughput	94.7%	9% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
ORC-L019	throughput	92.3%	9% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit then termination right
ORC-L020	availability	98.8%	4% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit then termination right
ORC-L021	response time	94.9%	5% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit only
ORC-L022	resolution time	98.3%	12% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L023	response time	90.3%	1% of monthly fee	11% of monthly fee	excluding scheduled maintenance	credit then termination right
ORC-L024	availability	91.2%	5% of monthly fee	18% of monthly fee	excluding force majeure	credit then termination right
ORC-L025	resolution time	97.7%	1% of monthly fee	14% of monthly fee	excluding force majeure	credit only
ORC-L026	response time	91.5%	12% of monthly fee	7% of monthly fee	excluding force majeure	credit only
ORC-L027	response time	92.4%	12% of monthly fee	29% of monthly fee	excluding force majeure	credit only
ORC-L028	throughput	90.7%	5% of monthly fee	20% of monthly fee	no exclusion	credit only
ORC-L029	availability	91.0%	7% of monthly fee	11% of monthly fee	no exclusion	credit only
ORC-L030	resolution time	96.7%	11% of monthly fee	21% of monthly fee	excluding Customer-caused outage	credit only
ORC-L031	response time	98.8%	9% of monthly fee	15% of monthly fee	excluding force majeure	credit then termination right
ORC-L032	availability	97.9%	11% of monthly fee	21% of monthly fee	excluding force majeure	credit then termination right
ORC-L033	response time	92.0%	6% of monthly fee	18% of monthly fee	excluding scheduled maintenance	credit only
ORC-L034	throughput	96.7%	10% of monthly fee	10% of monthly fee	no exclusion	credit only
ORC-L035	availability	91.8%	4% of monthly fee	18% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L036	throughput	90.9%	1% of monthly fee	25% of monthly fee	excluding Customer-caused	credit only

Orchard service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
					outage	
ORC-L037	response time	92.4%	12% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit only
ORC-L038	availability	96.8%	8% of monthly fee	23% of monthly fee	no exclusion	credit then termination right
ORC-L039	throughput	98.9%	5% of monthly fee	7% of monthly fee	no exclusion	credit then termination right
ORC-L040	response time	95.6%	6% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L041	availability	93.1%	8% of monthly fee	18% of monthly fee	excluding scheduled maintenance	credit then termination right
ORC-L042	availability	96.0%	10% of monthly fee	21% of monthly fee	excluding scheduled maintenance	credit only
ORC-L043	response time	97.7%	2% of monthly fee	13% of monthly fee	no exclusion	credit only
ORC-L044	throughput	95.9%	4% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L045	throughput	97.0%	11% of monthly fee	28% of monthly fee	excluding force majeure	credit only
ORC-L046	availability	96.6%	8% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L047	throughput	92.5%	7% of monthly fee	5% of monthly fee	excluding force majeure	credit only
ORC-L048	availability	90.6%	8% of monthly fee	15% of monthly fee	excluding scheduled maintenance	credit only
ORC-L049	response time	96.7%	4% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L050	response time	93.4%	9% of monthly fee	22% of monthly fee	no exclusion	credit then termination right
ORC-L051	resolution time	95.4%	7% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit then termination right
ORC-L052	response time	98.7%	3% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit only
ORC-L053	availability	97.0%	2% of monthly fee	8% of monthly fee	no exclusion	credit only
ORC-L054	throughput	91.5%	1% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit only
ORC-L055	response time	94.9%	6% of monthly fee	11% of monthly fee	no exclusion	credit then termination right
ORC-L056	throughput	92.3%	11% of monthly fee	29% of monthly fee	no exclusion	credit then termination right
ORC-L057	availability	93.0%	7% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
ORC-L058	throughput	96.5%	6% of monthly fee	26% of monthly fee	excluding force majeure	credit then termination right
ORC-L059	resolution time	97.0%	11% of monthly fee	15% of monthly fee	excluding scheduled maintenance	credit then termination right
ORC-L060	resolution time	97.6%	8% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L061	response time	95.1%	12% of monthly fee	11% of monthly fee	excluding force majeure	credit only
ORC-L062	resolution time	95.8%	2% of monthly fee	20% of monthly fee	no exclusion	credit then termination right
ORC-L063	throughput	95.1%	1% of monthly fee	8% of monthly fee	excluding Customer-caused	credit then termination right

Orchard service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
					outage	
ORC-L064	response time	92.3%	3% of monthly fee	6% of monthly fee	excluding force majeure	credit only
ORC-L065	resolution time	94.5%	2% of monthly fee	24% of monthly fee	no exclusion	credit only
ORC-L066	resolution time	97.1%	9% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L067	availability	91.6%	5% of monthly fee	30% of monthly fee	no exclusion	credit then termination right
ORC-L068	response time	96.5%	6% of monthly fee	11% of monthly fee	no exclusion	credit then termination right
ORC-L069	availability	91.8%	9% of monthly fee	21% of monthly fee	excluding Customer-caused outage	credit then termination right
ORC-L070	availability	92.4%	8% of monthly fee	29% of monthly fee	no exclusion	credit only
ORC-L071	resolution time	93.2%	10% of monthly fee	28% of monthly fee	no exclusion	credit then termination right
ORC-L072	resolution time	92.3%	1% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit only
ORC-L073	response time	90.8%	6% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit only
ORC-L074	availability	90.7%	6% of monthly fee	28% of monthly fee	no exclusion	credit only
ORC-L075	availability	98.2%	5% of monthly fee	27% of monthly fee	no exclusion	credit then termination right
ORC-L076	availability	97.7%	11% of monthly fee	7% of monthly fee	no exclusion	credit then termination right
ORC-L077	throughput	96.4%	5% of monthly fee	15% of monthly fee	excluding force majeure	credit then termination right
ORC-L078	throughput	94.8%	3% of monthly fee	15% of monthly fee	excluding force majeure	credit only
ORC-L079	availability	90.4%	11% of monthly fee	29% of monthly fee	no exclusion	credit only
ORC-L080	throughput	92.2%	8% of monthly fee	11% of monthly fee	excluding force majeure	credit only

9. Term, termination and transition

Orchard is not obliged, under Schedule 3, to accept that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Textually, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. This bites at Orchard's 5 sites, since a retail replenishment operator administers the Pricing and Renewal Amendment where the units work. Notices under Article 20 (Notices) go to the contracting entity named in the recital and not to any Orchard affiliate that may operate a site.

Orchard acknowledges that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Per the amendment history, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Orchard, a retail replenishment operator running 5 sites out of Oregon, the point matters because the Pricing and Renewal Amendment is administered site by site. The obligation as it applies to Orchard was tightened at signature, and Article 18 (Assignment) carries the negotiated wording rather than the standard wording.

Orchard pays the fees under Exhibit C in consideration of the Provider's undertaking that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the face of the clause, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Orchard is a Oregon retail replenishment business with 5 sites, the Pricing and Renewal Amendment devolves this to the site manager. Nothing in the Orchard negotiation history qualifies Article 13 (Licences), and a reviewer should not read the pre-signature drafts as doing so.

Orchard Retail Services Corp. undertakes that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Deliberately so: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Orchard's 5 sites, since a retail replenishment operator administers the Pricing and Renewal Amendment where the units work. Where Orchard has raised a query the Provider has answered by reference to Article 18 (Assignment), and the exchange is on the contract file.

10. Assignment, notices and general

Orchard Retail Services Corp. is entitled to require that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Deliberately so: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. 5 sites in Oregon means Orchard applies the Pricing and Renewal Amendment through its regional operations team rather than through head office. For a customer of Orchard's size the clause is unremarkable, but Article 13 (Licences) is drafted more tightly here than in the Provider's standard form.

Orchard has agreed, and the Provider has accepted, that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On timing, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Orchard treats the obligation as a site-level matter across its 5 sites in Oregon, consistent with the Pricing and Renewal Amendment. The Orchard file records the position as at the last amendment, and Article 12 (Intellectual Property) is the reference a reviewer should cite when raising it.

Orchard Retail Services Corp. undertakes that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. By design, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Orchard has 5 sites, and the Pricing and Renewal Amendment treats each as a separate delivery point. The Orchard relationship is managed against Article 11 (Data and Telemetry) at each quarterly review, and any variance is minuted there rather than in the Order.

Read with Schedule 2, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Procedurally, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. This bites at Orchard's 5 sites, since a retail replenishment operator administers the Pricing and Renewal Amendment where the units work. The Orchard relationship is managed against Article 10 (Change Control) at each quarterly review, and any variance is minuted there rather than in the Order.